

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	F – Case Maintenance
	Section No./Name	F-200-FITAP-SNAP Corrective Payments/Restoration
	Document No./Name	F-210-SNAP Entitlement
	Effective Date	January 1, 2023

I. STATEMENT OF POLICY

Households are entitled to restoration within 5 workdays from the date the loss is discovered, even if currently ineligible, when:

- a loss of benefits was caused by an agency error,
- a loss was caused by an administrative disqualification for IPV which was later reversed, or
- federal regulations state that the household is entitled to restoration.

Households are not entitled to restored benefits for client errors.

Restoration is authorized for not more than 12 months prior to whichever occurred first:

- the date the agency received a request for restoration from the household,
- the date the agency is notified or otherwise discovers a loss has occurred,
- the date court action was initiated if judicial action is the first action taken by the household to obtain restoration, or
- the date the household requested a fair hearing to contest an adverse decision, if no request for restoration was received.

II. PROCEDURES

* If there is no recovery account, the form [OFS 35](#) must be completed and submitted to the supervisor for review, approval, and system input. **

*** DO NOT AUTHORIZE PAYMENT/RESTORATION IF THE HOUSEHOLD HAS A PENDING OR ACTIVE RECOVERY ACCOUNT. * EMAIL THE UNDERPAYMENT TO THE FRAUD AND RECOVERY UNIT (FRU) AT DCFS.Fraud@la.gov. REFER TO THE PREVIOUS OVERPAYMENT AND INCLUDE THE CLIENT'S NAME, SOCIAL SECURITY NUMBER, CID, AND THE CLAIM NUMBER, IF THE CLAIM WAS COMPLETED IN THE CLAIMS CALCULATOR. Form OFS 20CD outlining the circumstances which necessitated the restoration should be attached to the EMAIL when there is a recovery account. WITHIN THREE WORKDAYS OF THE DATE OF REQUEST, FRU WILL NOTIFY THE WORKER VIA EMAIL OF THE BALANCE OF THE DEBT, THE AMOUNT THAT WILL BE APPLIED TO THE DEBT, AND THE AMOUNT OWED TO THE CLIENT IF FUNDS REMAIN. THE AMOUNT OF THE RESTORATION WILL BE THE AMOUNT THAT FRU INDICATED IN THEIR RESPONSE AS THE AMOUNT THAT IS OWED TO THE HOUSEHOLD. FRU WILL ADJUST THE DEBT ACCORDINGLY IN THE RECOVERY ACCOUNT MANAGEMENT SYSTEM. **

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III. FORMS AND INSTRUCTIONS

* OFS 20CD [Form](#) / [Instructions](#) Report of Claim Determination
OFS 35 [Form](#) / [Instructions](#) Request for Special/Manual Issuance

IV. REFERENCES

[Louisiana Administrative Code - Title 67 Social Services - Subpart 3 - Chapter 19: Certification of Eligible Households - Subchapter P](#) **